



Housing (Slum Clearance Compensation) Act 1965

1965 CHAPTER 81

An Act to amend the provisions of Part II of Schedule 2 to the Housing Act 1957 relating to private dwellings.
[22nd December 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Paragraph 4(1) in Part II of Schedule 2 to the Housing Act 1957 (payments to owner-occupiers of unfit houses purchased or vacated in pursuance of certain compulsory purchase orders, demolition or closing orders or clearance orders) shall have effect in relation—

to owner-occupiers of unfit houses.
1957 c. 56.

(a) to any such order made before 13th December 1965, and

(b) where the date on which the owner-occupier acquired his interest fell in the period of five years beginning with 13th December 1950, to any such order made within fifteen years beginning with the said date on which the owner-occupier acquired his interest,

and in the said paragraph 4(1) the words “ at any time before 13th December 1965 ” (which restrict the paragraph to cases where the compulsory purchase or vacation of the house took place before that date) shall be repealed.

(2) In this section the references to the date on which the owner-occupier acquired his interest are references to the date of the acquisition of the interest in the house referred to in the said paragraph 4(2).

Money
borrowed
by owner-
occupier to
purchase
unfit house
or on
security of an
unfit house.
1957 c. 56.

2.—(1) The jurisdiction exercisable by the county court under paragraph 5 in Part II of Schedule 2 to the Housing Act 1957 (power to modify mortgages, charges and agreements to purchase by instalments) shall be exercisable in any case described in subsection (2) of this section, and not only where a payment falls to be made under paragraph 4 in the said Part II and, accordingly, in the said paragraph 5(1) before the words “either party to the mortgage, charge or agreement may apply to the county court” there shall be inserted the words “or where section 2 of the Housing (Slum Clearance Compensation) Act 1965 applies”.

(2) This section shall apply where a house is purchased at site value in pursuance of a compulsory purchase order made by virtue of Part II or Part III of the Housing Act 1957, or has been vacated in pursuance of a demolition order, closing order or clearance order, and—

- (a) on the date of the making of the compulsory purchase or other order the whole or any part of the house is occupied as a private dwelling by a person having an interest in the house, and is so occupied in right of that interest, and
- (b) that person continues to own that interest until the end of the relevant period, and
- (c) that interest has, throughout the relevant period, been subject to a mortgage or charge or to an agreement to purchase by instalments.

(3) In determining what order, if any, to make under the said paragraph 5 (as originally enacted or as applied by this section) in the case of a mortgage or charge securing a sum which represents all or any part of the purchase price payable for the interest, the court shall have regard, without prejudice to the other considerations to be taken into account under the said paragraph 5, to whether the purchase price was excessive.

(4) This section shall apply in relation to cases where the purchase or vacation of the house in pursuance of the compulsory purchase or other order took place at any time before, as well as after, the passing of this Act.

(5) In this section “the relevant period” means the period from the date of the making of the compulsory purchase or other order to—

- (a) in the case of a compulsory purchase order, the date of service of notice to treat (or deemed service of notice to treat) for purchase of the said interest or, if the purchase is effected without service of notice to treat, the date of completion of that purchase, and

(b) in the case of any other order, the date of vacation of the house in pursuance of the order,
or, if the owner of the interest died before the date specified in paragraph (a) or (b) of this subsection, to the date of death.

(6) Paragraph 7 in Part II of Schedule 2 to the Housing Act 1957 c. 56. 1957 shall apply for the interpretation of this section and in this section—

“demolition order” means a demolition order under Part II of the Housing Act 1957;

“closing order” means a closing order under section 17 of that Act.

3. There shall be paid out of money provided by Parliament Expenses. any increase attributable to this Act in the sums so payable under any other Act.

4.—(1) This Act may be cited as the Housing (Slum Clearance Citation, Compensation) Act 1965, and this Act and the Housing Acts construction 1957 to 1964 may be cited together as the Housing Acts 1957 to and extent. 1965.

(2) Any reference in this Act to an enactment includes a reference to that enactment as amended or extended by or under any Act, and, in particular, references in this Act to Part II of Schedule 2 to the Housing Act 1957 include references to the said Part II as extended by paragraph 2(2) of Schedule 2 to the Land Compensation Act 1961; and the said paragraph 2 shall 1961 c. 33. have effect as if sections 1 and 2 of this Act formed part of the said Part II.

(3) This Act does not extend to Scotland or Northern Ireland.